

		The Case Management Conference is vacated. <i>Moving Defendants to give notice.</i>
111	Orange County Power Authority vs. County of Orange, 26-01542269	Plaintiff Orange County Power Authority ("Plaintiff") moves to transfer this action to a neutral county (preferably San Diego County) pursuant to Code of Civil Procedure section 394. Defendant County of Orange opposes the motion and argues the case should remain in Orange County. Alternatively, Defendant proposes the case be transferred to Los Angeles County or Riverside County. The Motion is GRANTED and the Court ORDERS the case TRANSFERRED to San Diego County. Code of Civil Procedure section 394 states: "An action or proceeding against a county . . . may be tried in the county, or city and county, or the county in which the city or local agency is situated, unless the action or proceeding is brought by a county, or city and county, a city, or local agency, in which case it may be tried in any county, or city and county, not a party thereto and in which the city or local agency is not situated. . . ." Code Civ. Proc., § 394, subd. (a).) "[S]ection 394 is a specific statute dealing with the venue of actions by or against counties and other public entities." (<i>City of Alameda v. Superior Court</i> (1974) 42 Cal.App.3d 312, 317.) (<i>Ibid.</i>) "The evident purpose is to guard against local prejudices which sometimes exist in favor of litigants within a county as against those from without and to secure to both parties to a suit a trial upon neutral ground." (<i>County of San Bernardino v. Superior Court</i> (1994) 30 Cal.App.4th 378, 386; <i>see also City of Alameda v. Superior Court</i> (1974) 42 Cal.App.3d 312, 317 ["It is designed to obviate the appearance of prejudice as well as actual prejudice or bias."].) <i>County of San Bernardino v. Superior Court</i> (1994) 30 Cal.App.4th 378, 386 provides the following example: "For example, in <i>Garrett v. Superior Court</i> (1947) 11 Cal.3d 245 [113 Cal.Rptr. 152, 520 P.2d 968], a

		nonresident defendant was allowed a change of venue under Clause Two in a condemnation action brought by Riverside County Flood Control and Water Conservation District in Riverside County, because "... it is still possible that a Riverside County juror will also be a District taxpayer with an interest in keeping the condemnation award unreasonably low. This situation would be precisely one which the Legislature must have intended to avoid by enacting section 394." (Id., at p. 248.) And as the court pointed out in City of Alameda, supra, there is no need for a party to demonstrate an actual danger of prejudice; the statute "is designed to obviate the appearance of prejudice as well as actual prejudice or bias." (42 Cal.App.3d at p. 317.)" (<i>Ibid.</i>) This a case brought by a plaintiff local agency against a defendant county and is currently being tried in the county in which both the plaintiff and defendant are situated. Based on the authority above, the motion is GRANTED. The Court ORDERS the case TRANSFERRED to San Diego County. The Case Management Conference is vacated. <i>Plaintiff to give notice.</i>
112	Mao vs. Mao, 25-01458525	The unopposed motion of attorney Jewels J. Jin of Jin Legal APLC to be relieved as counsel for Defendant Jamie Mao is GRANTED. Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. At the hearing, the parties shall be prepared to discuss whether the Court Trial scheduled for 10/08/2026 should be briefly continued or if the parties are prepared to proceed as scheduled. <i>Moving attorney to give notice.</i>